

26STCV01055 26STCV01055

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-07-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C07%2F14%2F2026

Source SHA-256: c32a310610fe144061bbfcae0c1bd47dc4b2276be612bfb601c46ae71672bd3d

Case Number: 26STCV01055 Hearing Date: July 14, 2026 Dept: 529

RAY HOWARD SUHLER VS FRANK BINDER, ET
AL.

DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES

Date of Hearing: July

14, 2026 Trial Date: None

set

Department: 529 Case No.: 26STCV01055

Moving Party: Defendant

Stuart Lyne

Responding Party: Plaintiff Ray Howard Suhler

Meet and Confer: Yes. Holmes Decl.

BACKGROUND

On January 12, 2026, Plaintiff Ray

Howard Suhler filed a complaint against Defendants Frank Binder, Electra Court, LLC Montelectra LLC, Pete Hill Construction Company, Inc., and Stuart Lyne asserting causes of action for negligence, nuisance, loss of lateral support, trespass, and reasonable use. On June 15, 2026, Plaintiff filed a First Amended Complaint, removing the causes of action for loss of lateral support, and reasonable use.

[TENTATIVE] RULING

Defendant

Stuart Lyne's Motion to Compel Further Discovery is DENIED.

DISCUSSION

Defendant

Stuart Lyne moves the court to compel discovery compliance on the grounds Plaintiff has only asserted evasive answers and the objections lack merit. Defendant Lyne also seeks monetary sanctions in the amount of \$6,192.50.

The

propounding party may bring motions to compel further responses to interrogatories, requests for production, and requests for admission if it believes the responses received are evasive or incomplete or if the objections raised are meritless or too general. (CCP §§ 2030.300(a), 2031.310(a), 2033.290(a).)

Defendant

Lyne argues after review of Plaintiff's discovery responses, Defendant Lyne's attorney determined that the responses were not only incomplete and deficient but evasive and in some cases made in apparent bad faith.

In

opposition, Plaintiff argues Plaintiff has now served supplemental responses to the Request for Admissions and Form Interrogatories.

Based upon

Plaintiff's supplemental responses, the court finds the motion moot. The court notes Defendant Lyne's motion failed to comply with Rules of Court, Rule 3.1345 by failing to file a separate statement. The court also notes Defendant had requested monetary sanctions. However, they are not in the notice of the motion and therefore, failed to comply with Code of Civil Procedure section 2023.040. Lastly, Defendant Lyne improperly combines the discovery motions. Multiple motions should not be combined into a single filing.